



BSc. Hons in Ethical Hacking & Cybersecurity

ST4019CMD The Ethics and Legal Framework of Cyber Security

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Abstract

Cybersecurity is not just a technical issue anymore; it's becoming a legal, ethical, leadership and personal professional identity issue. This report is a compilation of four interrelated reports on aspects of that reality from various perspectives: Comparative Cyber Law in Nepal and UK, Ethics of AI-based Threat Detection, Cybersecurity Governance and Leadership, and a personal reflection on professional development. It tests the strength of law, ethics and leadership in real-world incidents such as TalkTalk, hack of the Nepal Police website, Equifax, Colonial Pipeline and SolarWinds, then offers an integrated governance policy for a multinational organisation and does some soul searching about the skills the cybersecurity professional requires to operate responsibly. Combined, the report says: "The best cybersecurity requires not only solid technical barriers but also good law, ethical judgment, and responsible leadership.

Introduction

Digital systems now sit underneath almost everything modern organisations and governments do, which means the consequences of getting cybersecurity wrong reach far beyond a technical outage. This report pulls together four pieces of work that each look at a different layer of the problem: the law that is supposed to govern cyberspace, the ethics that should guide the technology used to defend it, the leadership that determines how organisations respond when things go wrong, and the personal competencies a cybersecurity professional needs to operate responsibly within all of this.

The first section compares the legal frameworks of Nepal and the United Kingdom, two countries at very different stages of regulatory maturity, using the 2025 Nepal Police website breach and the 2015 TalkTalk breach as real-world tests. The second section moves from law to ethics, focusing on AI-based threat detection and the dilemmas of bias and privacy, evaluated through Utilitarian and Rawlsian frameworks. The third section shifts to governance and leadership, contrasting Equifax and Colonial Pipeline's weak responses with Microsoft's transparent handling of SolarWinds, before proposing an integrated governance policy. The final section is a personal reflection on three core professional competencies: threat intelligence, ethical decision-making, and policy development.

Read together, these four sections make the same underlying point from different directions: cybersecurity is a discipline built on law, ethics, and leadership as much as it is on technical controls.

Task 1: Comparative Cybersecurity Legal Frameworks and Global Jurisprudence

1.2 Comparative Analysis of Legal Frameworks

1.2.1 Nepal: Electronic Transactions Act 2063 and the Proposed IT Bill 2024

Nepal's Electronic Transactions Act 2063 (ETA 2063), passed in 2008, was a reasonable first step, recognising electronic records and digital signatures and criminalising offences such as unauthorised access and posting illegal content online ([Radiant Chartered Accountants, n.d.](#); [Law Imperial, n.d.](#)). But its provisions are vague, do not account for newer cybercrime, and say almost nothing about data protection or critical infrastructure. The proposed IT Bill 2024 aims to close this gap with a National Cyber Security Center, mandatory licensing for providers, and protection for critical infrastructure, though it still does not clearly define "critical" infrastructure or set consistent reporting obligations ([R.A. & Associate, n.d.](#)).

1.2.2 United Kingdom: Computer Misuse Act 1990, Data Protection Act 2018, and GDPR

The UK has its own legislation, along with regulation that is based on the EU's previous laws, such as GDPR, which remains applicable in the UK after Brexit in a UK specific format. Unauthorised access and disruption of computer systems is criminalised under the Computer Misuse Act 1990 which continues to be the basic legislation for the prosecution of hacking. The Data Protection Act 2018 is in place to complement the GDPR, with the aim of establishing a high standard for fairness,

transparency and accountability and providing enforceable rights for individuals over their data ([DLA Piper, n.d.](#)).

1.2.3 Addressing Key Cybersecurity Domains

Cybercrime

Both Nepal's ETA 2063 and the UK's CMA 1990 Criminalize cybercrime. However, the UK law is more updated compared to that of Nepal. Besides, Nepal's proposed IT Bill 2024 seeks to promote and enforce cybercrime to enhance security against cyber-attack.

Data Protection

The UK has better data protection laws, such as DPA 2018 and GDPR, compared to Nepal's ETA 2063. Even though the IT Bill 2024 propose some data protection provisions, there is a need for improved guidelines on processing personal data from other jurisdictions.

Critical Infrastructure Security

The UK possesses advanced regulator framework regarding critical infrastructure. The IT Bill 2024 proposes a good start, but there is a need for more elaborated guidelines and provisions on critical infrastructure in Nepal.

Digital Civil Rights

The UK better protects its citizens digital civil rights, compared to Nepal. The former offers more comprehensive data privacy and data protection laws. On the other hand, Nepal needs to develop better legal provisions to enhance the security of its citizens data, especially personal data, including information transmitted across borders.

1.3 International Harmonization and Gap Analysis for Nepal

International frameworks like the Budapest Convention and OECD Digital Security Guidelines offer useful models for harmonizing cybersecurity laws worldwide. The Budapest Convention provides a shared legal framework for tackling cybercrime, encouraging international cooperation, and aligning criminal law provisions. The OECD Guidelines push for a risk-based approach to digital security, promoting a broader culture of responsibility and safety.

Nepal's ETA 2063 falls short of these standards in several ways:

- Outdated Cybercrime Laws: Nepal ETA 2063 has vague cybercrime definition and should be update to address emerging threats
- Weak Data Protection: Strengthen privacy like the GDPR to better protect personal data.
- Critical Infrastructure: Develop explicit regulation for securing critical infrastructure.
- International Cooperation: Create policies that facilitate international collaboration on cybercrime investigations.

1.4 Case Studies: When Law Struggled

1.4.1 Nepal: The Struggle with Emerging Cybercrime and Digital Evidence

There are not many documented cybercrime prosecutions in Nepal and, indeed, that is a sign of the problem: the question is how ETA 2063 performs as technology and means of evidence collection evolve so rapidly, and as forensics tools are so limited. This is clearly demonstrated in the 2025 Nepal Police website hack, in which a hacker group said they had released millions of citizen's records, including government records that are considered vulnerable ([CyberAlert Nepal, n.d.](#); [OnlineKhabar, 2024](#); [Kathmandu Post, 2023](#)).

1.4.2 United Kingdom: The Talk Talk Data Breach (2015) and the Data Protection Act

The TalkTalk data breach of October 2015 shows how the UK's older data protection laws struggled to keep consumer data safe. Attackers exploited SQL injection flaws in outdated webpages, exposing personal and banking details of over 150,000 customers ([Wikipedia, n.d.](#)).

The ICO's investigation found that TalkTalk hadn't patched outdated software or properly monitored its systems for weaknesses ([Information Commissioner's Office, n.d.](#)). As a result, the company was fined a record £400,000 for breaching the Data

Protection Act 1998 by failing to secure customer data adequately ([The Guardian, 2016](#)).

The failures were layered:

- **Neglected legacy systems:** The breach traced back to systems from an old acquisition that TalkTalk hadn't secured or even realized were still active. This exposed a real gap in accountability for inherited infrastructure.
- **Poor security hygiene:** Outdated software and a lack of active monitoring showed basic cybersecurity practices weren't being followed, even though SQL injection is a well-known threat.
- **Damaged public trust:** The breach badly hurt TalkTalk's reputation and raised wider doubts about how seriously telecom companies were taking data security.

This case helped push the UK toward stronger standards, feeding directly into the stricter DPA 2018 and GDPR that followed. The fine, hefty for its time, also made clear that ignoring cybersecurity has real financial costs.

Task 2: Ethical Dilemmas in Disruptive Cybersecurity Technologies

2.2 Technology: AI-Based Threat Detection

AI threat detection leverages machine learning algorithms to examine network traffic, user activity, and system logs for any patterns that deviate from the norm, including zero-day attacks ([Interface Magazine, 2024](#)). The fact that it's based on large amounts of data and the use of “black box” algorithms brings into real question how decisions are made.

2.3 Ethical Dilemmas

2.3.1 Dilemma 1: Bias, Discrimination, and False Positives

Cybersecurity AI systems can introduce biases that result from the data they have been trained on, such as a model that is more likely to detect suspicious activity or

traffic from certain groups or regions of users than others. This increases the number of false positives, the time spent trying to catch up with them and the judgment of individuals and organizations ([CEBRI, n.d.](#))

The dilemma: adopt a very successful AI system that is being applied in a way that is unfair to some groups, or a less effective AI but more equitable for those groups?

2.3.2 Dilemma 2: The Erosion of Privacy for Enhanced Security

However, AI threat detection is only effective when it is continuously monitoring user activity, communications and network traffic to determine what is normal and what is not. Such constant surveillance is bound to clash with people's right to privacy ([Internet Encyclopedia of Philosophy, n.d.](#)).

The question is whether it's ethical to constantly monitor all users to detect threats, sacrificing privacy for overall security, or if giving them privacy prevails even if it means more attacks will be successful?

2.4 Ethical Evaluation

2.4.1 Utilitarianism

Utilitarianism looks at the consequences of actions what is morally good is whatever action produces the greatest amount of good for the greatest number. If an AI system prevents a large-scale attack, such as ransomware targeting a hospital, it could be considered beneficial, even if there are more false positives targeting a smaller number of systems ([Quora, 2017](#)). A rule utilitarian, however, would back away, saying that trust and fairness over time decrease if there is constant bias which lowers overall utility in the long run.

On the privacy versus security issue, utilitarianism is more pro surveillance: the costs of a large-scale breach are seen as considerably more serious than the nuisance of being monitored, so that collectively protecting people is better.

2.4.2 Rawlsian Justice

John Rawls's theory of justice, especially the "veil of ignorance," asks us to design rules without knowing our own place in society our race, class, or whether we'd be

a typical user or a flagged suspect. It centers on fairness and protecting those worst off ([PubMed Central, 2024](#); [Springer Link, 2023](#)).

- **Evaluating Bias (Dilemma 1):** Rawlsian Perspective: From a Rawlsian perspective, biased AI is unfair because no one would want a system that could discriminate against them without knowing their own place in society. The Difference Principle that Rawls states that inequality is only allowable if it is beneficial to the least advantaged, means that AI that discriminates against certain groups is not justifiable.
- **Evaluating Privacy vs. Security (Dilemma 2):** Rawls says that privacy is a right which cannot be traded for increased security. A fair surveillance system should be based on transparent and clear rules and principles, and it should be well overseen, preventing security and personal privacy from being undermined, rather than accepting mass surveillance.

2.5 Real-World Application: AI in Corporate Surveillance

Imagine that an organization is using AI technology to monitor its employees' email and access to different parts of the building in order to ensure that no one is stealing any information. This could be a good idea, but some employees may feel that is invading their privacy. One way to fix this would be to have a system where employees are notified of any monitoring and have a way to appeal if they feel that they are being wrongly accused.

Task 3: Cybersecurity Governance, Leadership, and Policy Framework Development

3.2 Leadership Autopsy: Weak vs. Strong Postures

3.2.1 The Anatomy of Weak Leadership: Equifax and Colonial Pipeline

The data of 147 million individuals was compromised in the Equifax breach in 2017 due to the leadership's failure to patch a known security vulnerability and inform the market. This bad governance had a tremendous impact on customer confidence ([Huntress, 2025](#)). The Colonial Pipeline ransomware attack occurred due to an unsecured VPN account that was not protected by multi-factor authentication.

(MFA). The attack on the pipeline highlighted that the company was not prepared to deal with a cyber attack and was unable to shut down the pipeline and pay the fine ([Department of Energy, n.d.](#); [Cybersecurity and Infrastructure Security Agency, 2023](#)).

3.2.2 The Anatomy of Strong Leadership: Microsoft and SolarWinds

Microsoft's response to the SolarWinds attack (2020-2021) was strong. This wasn't an incident that the company covered up, but one which it was open about, shared threat intelligence and collaborated on enhancing cyber security. It was clear, focused on the wider community and showed a mature and responsible approach to incident response ([Microsoft, 2020a](#); [Microsoft, 2020b](#); [House Committee on Homeland Security, 2021](#)).

3.2.3 The Decisive Moments

Strong Leadership is demonstrated by addressing cybersecurity threats before they occur through measure such as patching and multifactor authentication and being transparent about incidents after they occur. Poor leadership is demonstrated by treating cybersecurity not as a priority business issues, but rather as an IT concern. On the other hand, good leadership realize that cybersecurity threats pose serious liability concerns for the firm.

3.3 Integrated Cybersecurity Ethics and Governance Policy

This policy applies to a multinational organization operating in Nepal, the UK, and the EU. It ensures compliance with Nepal's ETA 2063 (and the upcoming IT Bill 2024), the UK's DPA 2018, and the EU's GDPR, while aligning with frameworks like ISO/IEC 27001 and NIST CSF.

3.3.1 Policy Statement and Scope

This policy sets out the governance structure and ethical standards for protecting the organization's information assets. It covers all employees, contractors, and third-party vendors across every jurisdiction the company operates in Nepal, the UK, and the EU.

3.3.2 Core Principles

Three principles anchor the policy: **Privacy by Design** (GDPR Art. 25), building security into systems from the outset; **Data Minimization** (GDPR Art. 5 / ISO 27001), collecting only what is necessary; and **Least Privilege** (NIST CSF PR.AC-6), restricting access to what each role requires.

3.3.3 Cross-Border Data Transfer Governance

To handle the clash between the EU GDPR's strict transfer rules and Nepal's proposed data localization requirements under the IT Bill 2024, the organization will take a hybrid approach:

- **Data Localization (Nepal):** Sensitive citizen data collected in Nepal will be stored within the country to meet upcoming local regulations.
- **Standard Contractual Clauses (SCCs):** When data needs to move from the EU/UK to Nepal or other countries, the organization will use approved SCCs to ensure the receiving party offers protection equivalent to GDPR standards.

3.3.4 Incident Reporting and Management

- **Mandatory Reporting:** Report any suspected incident to the SOC immediately.
- **Regulatory Notification:** Notify relevant authorities (like the ICO in the UK or Nepal's proposed NCSC) within 72 hours of a data breach, per GDPR and Nepal's emerging standards.

3.3.5 Role-Specific Ethical Guidelines

To ensure accountability, specific duties are mapped to framework clauses:

Role	Ethical Duty & Responsibility	Framework Mapping
SOC Analyst	Duty of Confidentiality and Integrity: Must monitor systems fairly and without bias, staying within authorized limits so employee privacy isn't overstepped. Must report	NIST CSF (DE.CM): Anomalies and Events are detected in a timely manner

	anomalies accurately, without altering logs.	
Chief Information Security Officer (CISO)	Transparency & Risk Communication: Must give the Board an honest picture of the organization's risk level. Can't hide vulnerabilities or delay breach reporting to protect reputation.	ISO/IEC 27001 (Clause 5): Leadership's role in the security management system.
IT Auditor	Independence & Objectivity: Must audit free from management influence and report findings honestly even flagging non-compliance with data minimization or least privilege, despite any friction it causes.	COBIT 2019 (MEA02): Ensures independent assurance through managed internal controls.

Task 4: Professional Portfolio, Ethical Identity, and Reflective Growth

4.2 Three Critical Competencies for Cybersecurity Professionals

4.2.1 Competency 1: Cyber Threat Intelligence Analysis

The ability to gather, process, analyze, and share useful intelligence on current and emerging cyber threats. This means understanding attacker tactics, techniques, and procedures, assessing what threat actors are capable of, and anticipating likely attack methods to help shape stronger defenses.

Evidence of Development:

My understanding of cyber threat intelligence has significantly improved after studying this module. I discovered that CTI is not only concerned with responding to incidents after they occur but also with preventing them in the first place. The cases involving Equifax breach and Colonial Pipeline ransomware attack taught me the importance of timely collection and analysis of threat intelligence, patching, and vulnerability assessment. Moreover, I got familiar with different open source intelligence tools for detecting cyber threats.

Growth Plan:

1. **Complete a Certification:** Earn a certification like **CompTIA CySA+** to build strong threat intelligence skills and gain industry recognition.
2. **Join Cybersecurity Communities:** Take part in online cybersecurity groups, follow threat intelligence experts, and learn about the latest cyber threats.
3. **Practice with Real Scenarios:** Improve your skills by working on hands-on labs, analyzing malware or phishing attacks, and practicing incident response in simulated environments.

4.2.2 Competency 2: Ethical Decision-Making in Cybersecurity

Description: The ability to recognize, understand, and solve ethical issues in cybersecurity while balancing security needs, user privacy, individual rights, and the impact on society. It also involves following ethical principles and professional standards when making decisions.

Evidence of Development:

This module deepened my understanding of the ethics of cybersecurity since I have learned how to balance the need for security and privacy, make informed decisions regarding security measures, and recognize the importance of ethical issues in leadership and risk management. Moreover, the course enabled me to think through the human side of cybersecurity.

Growth Plan:

1. **Learn Ethical Guidelines:** Regularly study ethical frameworks and apply them to cybersecurity situations to improve my decision-making.
2. **Join Ethics Discussions:** Take part in workshops, or discussions to learn different views on cybersecurity ethics.

3. Follow a Personal Code of Ethics: Create and follow a personal code of ethics based on professional standards to guide my actions and decisions in cybersecurity.

4.2.3 Competency 3: Policy Development and Implementation

Description: The ability to turn legal and ethical requirements into clear cybersecurity policies and procedures that support an organization's goals and meet legal regulations. It also involves working with stakeholders and regularly updating policies to keep them effective.

Evidence of Development:

Through this module, I learned how cybersecurity laws and regulations help organizations create effective security policies. Studying Nepal's ETA 2063, the proposed IT Bill 2024, the UK DPA 2018, and GDPR helped me understand different legal requirements. I also learned how to develop cybersecurity policies using frameworks like NIST CSF, ISO 27001, and COBIT. Overall, I gained practical knowledge of creating policies, identifying gaps, and ensuring organizations meet legal and security requirements.

Growth Plan:

- 1. Learn Security Frameworks:** Study frameworks like **ISO 27001**, **NIST CSF**, and **COBIT** to understand how cybersecurity policies are created and managed.
- 2. Practice Writing Policies:** Gain experience by creating or improving cybersecurity policies and procedures in practical projects or organizational settings.
- 3. Understand Compliance:** Learn how security policies are reviewed, audited, and followed to ensure they meet legal and organizational requirements.

4.3 Ethical Identity and Professional Reputation

This module helped me become a more ethical cybersecurity professional because I learned the importance of being moral and responsible, being honest with customers, and the significance of maintaining privacy and transparency in the wake of an ethical breach. By comparing the cases of Microsoft and Equifax, it becomes obvious how being ethical and honest can help companies manage the aftermath of security problems.

Conclusion

Overall, this report demonstrated that the key to the success of cybersecurity is not only technical, but also legal, ethical, and leadership skills. The role of modern cyber laws was emphasized by the comparison with UK, and the ethical discussion revealed the need to strike a balance between security and fairness and privacy. The three case studies of Equifax, Colonial Pipeline, and Microsoft showed how leadership and transparency are vital during the cyber incident. Last but not least, this module helped me build my expertise on threat intelligence, ethical decision making and policy formulation, which puts me in position to be a responsible cybersecurity professional.

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GitHub

<https://github.com/csah45564-debug/The-Ethics-And-Legal-Framework-Of-Cyber-Security.git>